THE MARINE ENVIRONMENT PROTECTION COMMITTEE,

RECALLING article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Marine Environment Protection Committee conferred upon it by the international conventions for the prevention and control of marine pollution,

RECALLING ALSO that the International Conference on the Safe and Environmentally Sound Recycling of Ships held in May 2009 adopted the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009 (the Hong Kong Convention) together with six Conference resolutions,

NOTING that regulation 16.1 of the annex to the Hong Kong Convention requires that Ship Recycling Facilities which recycle ships to which the Convention applies, or ships treated

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SOURCE: MEPC.211(63).pdf
Kong Convention) together with six Conference resolutions,

NOTING that regulation 16.1 of the annex to the Hong Kong Convention requires that Ship Recycling Facilities which recycle ships to which the Convention applies, or ships treated similarly pursuant to article 3.4 of the Hong Ko ng Convention, shall be authorized by a Party taking into account the guidelines developed by the Organization,

NOTING ALSO that regulation 15.3 of the annex to the Hong Kong Convention requires that each Party shall establish a mechanism for ensuring that Ship Recycling Facilities comply with the requirements of the Convention including the establishment and effective use of inspection, monitoring and enforcement provisions, and that such a mechanism may include an audit scheme to be carried out by the Competent Authority(ies) or an organization recognized by the Party, taking into account guidelines developed by the Organization,

BEARING IN MIND that the International Conference on the Safe and Environmentally Sound Recycling of Ships, in its resolution 4, invited the Organization to develop Guidelines

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SOURCE: MEPC.211(63).pdf
BEARING IN MIND that the International Conference on the Safe and Environmentally Sound Recycling of Ships, in its resolution 4, invited the Organization to develop Guidelines for global, uniform and effective implementation and enforcement of the relevant requirements of the Convention as a matter of urgency,

HAVING CONSIDERED, at its sixty-third session, the draft 2012 Guidelines for the authorization of ship recycling facilities, developed by the Working Group on Ship Recycling,

1. ADOPTS the 2012 Guidelines for the authorization of ship recycling facilities, as set out in the Annex to this resolution;

2. INVITES Governments to apply the Guidelines as soon as possible, or when the Hong Kong Convention becomes applicable to them; and

3. REQUESTS the Committee to keep the Guidelines under review.

2012 GUIDELINES FOR THE AUTHORIZATION OF SHIP RECYCLING FACILITIES

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1 INTRODUCTION

1.1 Objectives of the guidelines

These guidelines provide recommendations for Parties on establishing mechanisms for authorizing Ship Recycling Facilities in accordance with the requirements of the Hong Kong International Convention for the Safe and Environmentally Sound Recycling of Ships, 2009 (hereafter referred to as "the Convention").

These guidelines should be used primarily by the Competent Authority(ies) and the organizations recognized by the Competent Authority(ies). The guidelines may also be useful for Ship Recycling Facilities in preparing for the authorization process.

1.2 Approach of the guidelines

Article 6 and regulation 16 of the Convention require Ship Recycling Facilities that recycle ships to which the Convention applies, or ships treated similarly pursuant to article 3.4 of the Convention, to be authorized taking into account the guidelines developed by the

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ships to which the Convention applies, or ships treated similarly pursuant to article 3.4 of the Convention, to be authorized taking into account the guidelines developed by the Organization.

The present guidelines provide guidance on establishing a scheme for authorizing Ship Recycling Facilities, covering the following areas: necessary documentation; verification of documentation; site inspection; audit scheme; specific procedural action relating to issuing, amending, suspending, withdrawing and renewing the Document of Authorization to conduct Ship Recycling (DASR); validity of the DASR; communication of information; and monitoring of the activities of the Ship Recycling Facility.

2 DEFINITIONS

The terms used in these guidelines have the same meaning as those defined in the Convention. For the purposes of these guidelines, the following additional definitions apply.